IN THE COURT OF [COURT NAME]

Lawyer's Brief for Complainant in Banking Fraud Case

Introduction

This brief is submitted on behalf of the Complainant in a banking fraud dispute against the Respondent. The dispute revolves around an unauthorized transaction where the Complainant's account was debited with ₹25,000 after sharing the One-Time Password (OTP).

Facts of the Case

1. **OTP Shared**: The Complainant shared the OTP, which was used to carry out an unauthorized transaction.
2. **Unauthorized Debit**: ₹25,000 was deducted from the Complainant's account without their consent.

Relevant Law Sections

- **Transfer of Property Act, 1882, Section 46**: This section is relevant as it pertains to the transfer of property and can be applied in cases where there is a dispute over the transfer of funds.
- **BNSS 2023, Section 531**: This section is applicable as it deals with the legal framework surrounding banking transactions and fraud, providing a basis for the Complainant's claim against the Respondent.

Relief Sought

The Complainant seeks the following relief:

- **Refund of ₹25,000**: The amount that was unauthorizedly deducted from the Complainant's account.
- **Compensation for Banking Fraud**: Additional compensation for the distress, inconvenience, and financial loss suffered due to the banking fraud.

Conclusion

In conclusion, the Complainant has been a victim of banking fraud, with ₹25,000 being deducted from their account without authorization. The law sections cited provide a legal basis for the Complainant's claim. It is respectfully prayed that this Hon'ble Court grant the relief sought by the Complainant and provide justice in this matter.

DISCLAIMER: This document is AI-generated and does not constitute legal advice.